

HOUSE No. 994

The Commonwealth of Massachusetts

PRESENTED BY:

Hadley Luddy and Julian Cyr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act regulating the application of fertilizer used in the town of Orleans.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Hadley Luddy</i>	<i>4th Barnstable</i>	<i>1/15/2025</i>
<i>Julian Cyr</i>	<i>Cape and Islands</i>	<i>1/15/2025</i>

HOUSE No. 994

By Representative Luddy of Orleans and Senator Cyr, a joint petition (accompanied by bill, House, No. 994) of Hadley Luddy and Julian Cyr (by vote of the town) relative to regulating the application of fertilizer used in the town of Orleans. Environment and Natural Resources.
[Local Approval Received.]

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 874 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act regulating the application of fertilizer used in the town of Orleans.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. There is sound scientific evidence to conclude that nitrogen and phosphorus
2 in fertilizers are contaminants that negatively affect fresh and salt waters when present in
3 excessive amounts. These excessive amounts of nitrogen and phosphorus contribute to
4 undesirable algae and aquatic plant growth within all Orleans water bodies. This undesirable
5 algae and aquatic plant growth has an adverse effect on public health through the degradation of
6 waters used for drinking water, shell fishing, and recreational swimming and boating.

7 SECTION 2. It is necessary to prohibit the application of fertilizer that contains
8 phosphorus and nitrogen so as to improve the water quality of the Town of Orleans. The soils of
9 Orleans are unique insofar as Orleans has significant amounts of coarse, sandy soils that are

10 subject to rapid water infiltration, percolation and leaching of nutrients, and such unique local
11 conditions require that Orleans prohibit the application of nitrogen and phosphorus added to soils
12 through the application of fertilizers. This act should help Orleans to achieve compliance with
13 the Total Maximum Daily Loads (TMDL) prescribed by the Commonwealth of Massachusetts
14 for nitrogen and phosphorus in its waters.

15 SECTION 3. Notwithstanding any general or special law to the contrary, including but
16 not limited to any general or special law conferring exclusive authority upon the Department of
17 Agriculture to regulate and control the application of fertilizers elsewhere in the Commonwealth,
18 the application of fertilizer containing nitrogen or phosphorus, or any other pollutants in the town
19 of Orleans is prohibited, except for the purposes of commercial agricultural and the residential
20 use of certified organic fertilizer with low nitrogen and phosphorus for the use in growing fruits
21 and vegetables that is allowable under the USDA National Organic Program organic standards
22 (OMRI listed).

23 SECTION 4. This act shall take effect upon passage.